

STATE OF NEW YORK

1001--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. CLARK, CHANDLER-WATERMAN, DAVILA, SIMON, GONZALEZ-ROJAS, ZACCARO, BICHOTTE HERMELYN -- read once and referred to the Committee on Children and Families -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to implementing automatic market rate increases for child care assistance

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 4 of section 410-x of the social services law,
2 as added by section 52 of part B of chapter 436 of the laws of 1997, is
3 amended to read as follows:

4 4. The amount to be paid [~~or allowed~~] for child care assistance funded
5 under the block grant shall be [~~the actual cost of care but no more~~
6 ~~than~~] equal to the applicable [~~market-related~~] payment rate established
7 by the department in regulations. The payment rates established by the
8 department shall be sufficient to ensure equal access for eligible chil-
9 dren to comparable child care assistance in the substate area that are
10 provided to children whose parents are not eligible to receive assist-
11 ance under any federal or state programs. Such payment rates shall take
12 into account the variations in the costs of providing child care in
13 different settings and to children of different age groups, and the
14 additional costs of providing child care for children with special
15 needs.

16 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD02595-02-5